



Competition and Consumer Amendment (Australian Energy Regulator Separation) Act 2025

No. 59, 2025

**An Act to separate the Australian Energy
Regulator from the Australian Competition and
Consumer Commission, and for related purposes**

Note: An electronic version of this Act is available on the Federal Register of Legislation
(<https://www.legislation.gov.au/>)

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**An Act to separate the Australian Energy
Regulator from the Australian Competition and
Consumer Commission, and for related purposes**

[Assented to 6 November 2025]

The Parliament of Australia enacts:

*No. 59, 2025 Competition and Consumer Amendment (Australian Energy Regulator
Separation) Act 2025 1*

1 Short title

This Act is the *Competition and Consumer Amendment (Australian Energy Regulator Separation) Act 2025*.

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this Act	1 July 2026.	1 July 2026

Note: This table relates only to the provisions of this Act as originally enacted. It will not be amended to deal with any later amendments of this Act.

- (2) Any information in column 3 of the table is not part of this Act. Information may be inserted in this column, or information in it may be edited, in any published version of this Act.

3 Schedules

Legislation that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Main amendments

Competition and Consumer Act 2010

1 After subsection 6A(1)

Insert:

- (1AA) For the purposes of the finance law (within the meaning of the *Public Governance, Performance and Accountability Act 2013*):
- (a) the Commission is a listed entity; and
 - (b) the Chairperson is the accountable authority of the Commission; and
 - (c) the following persons are officials of the Commission:
 - (i) the Chairperson;
 - (ii) the other members of the Commission;
 - (iii) the associate members of the Commission;
 - (iv) persons engaged under section 27; and
 - (d) the purposes of the Commission include the functions conferred on the Commission by this Act.

2 Section 8AB

Repeal the section.

3 After section 28

Insert:

28A Function of Commission in relation to providing resources to the AER

In addition to any other functions conferred on the Commission, the Commission may provide the AER with supports and resources (including corporate and information technology resources) to assist in the administration of the AER.

4 Section 44AB

Insert:

AER State/Territory energy law means any of the following laws:

- (a) a uniform energy law that applies as a law of a State or Territory;
- (b) a law of a State or Territory that applies a law mentioned in paragraph (a) as a law of its own jurisdiction;
- (c) any other provisions of a law of a State or Territory that:
 - (i) relate to energy; and
 - (ii) are prescribed by the regulations for the purposes of this paragraph;being those provisions as in force from time to time.

5 After subsection 44AE(1)

Insert:

- (1A) For the purposes of the finance law (within the meaning of the *Public Governance, Performance and Accountability Act 2013*):
 - (a) the AER is a listed entity; and
 - (b) the AER members are the accountable authority of the AER; and
 - (c) the following persons are officials of the AER:
 - (i) the AER members;
 - (ii) the staff of the AER referred to in section 44AAC;
 - (iii) persons assisting the AER referred to in section 44AACA;
 - (iv) consultants engaged under section 44AACB; and
 - (d) the purposes of the AER include the functions of the AER under Division 3 of this Part.

6 Paragraph 44AE(3)(a)

Before “not to be”, insert “to be a non-corporate Commonwealth entity, and”.

7 Paragraph 44AE(3)(b)

Omit “, and a part of the Commission”.

8 Sections 44AI to 44AJ

Omit “a State/Territory energy law” (wherever occurring), substitute “an AER State/Territory energy law”.

9 Section 44AK (heading)

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

10 Section 44AK

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

11 Subsection 44AM(1) (note)

Repeal the note.

12 Subsection 44AP(1) (note)

Repeal the note.

13 Subsection 44AY(3) (note)

Repeal the note.

14 Subdivision B of Division 4 of Part IIIAA

Repeal the Subdivision, substitute:

Subdivision B—Staff of the AER etc.**44AAC Staff of the AER**

- (1) The staff of the AER must be persons engaged under the *Public Service Act 1999*.
- (2) For the purposes of the *Public Service Act 1999*:
 - (a) the AER Chair and the APS employees assisting the AER Chair together constitute a Statutory Agency; and
 - (b) the AER Chair is the Head of that Statutory Agency.

44ACA Persons assisting the AER

- (1) The AER may be assisted by:
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- (a) officers and employees of Agencies (within the meaning of the *Public Service Act 1999*), and of authorities of the Commonwealth, whose services are made available to the AER in connection with the performance of any of the AER's functions; and
 - (b) persons whose services are made available under arrangements made under subsection (2).
- (2) The AER may, on behalf of the Commonwealth, make an arrangement with the appropriate authority or officer of:
 - (a) a State or Territory government; or
 - (b) a State or Territory government authority;under which the government or authority makes officers or employees available to the AER to perform services in connection with the performance of any of the AER's functions.
- (3) An arrangement under subsection (2) may provide for the Commonwealth to reimburse a State or Territory with respect to the services of a person to whom the arrangement relates.
- (4) When performing services for the AER under this section, a person is subject to the directions of the AER.

44AACB Consultants

- (1) The AER may, on behalf of the Commonwealth, engage persons to give advice to, and perform services for, the AER.
- (2) The terms and conditions of engagement are as determined by the AER.

15 Paragraph 44AEA(1)(c)

Omit "a State/Territory energy law", substitute "an AER State/Territory energy law".

16 Section 44AEC (heading)

Omit "a State/Territory energy law", substitute "an AER State/Territory energy law".

17 Paragraph 44AAEC(1)(a)

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

18 Subsection 44AAEC(10)

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

19 Subsections 44AAEC(10) and (11)

Omit “the State/Territory energy law” (wherever occurring), substitute “the AER State/Territory energy law”.

20 Subparagraph 44AAF(6)(a)(i)

Omit “, a person referred to in section 44AAC”.

21 After subparagraph 44AAF(6)(a)(i)

Insert:

- (ii) a member of the staff of the AER; or
- (iii) a person assisting the AER referred to in section 44AACA; or
- (iv) a consultant engaged under section 44AACB; or

22 Subparagraph 44AAF(6)(a)(ii)

Renumber as subparagraph (v).

23 Paragraph 44AAFA(2)(c)

Repeal the paragraph, substitute:

(c) appear before:

- (i) the AER; or
- (ii) a specified member of the staff of the AER who is an SES employee or an acting SES employee; or
- (iii) a specified person assisting the AER, referred to in section 44AACA, who is an SES employee or an acting SES employee;

to give any such evidence (either orally or in writing) and produce any such documents.

24 Section 44AAG

Omit “a State/Territory energy law” (wherever occurring), substitute “an AER State/Territory energy law”.

25 Paragraph 44AAH(b)

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

26 Section 44AAH

Omit “an SES employee, or acting SES employee, assisting the AER as mentioned in section 44AAC”, substitute “a member of the staff of the AER who is an SES employee or acting SES employee”.

27 Subsection 44AAI(1)

Omit “a State/Territory energy law”, substitute “an AER State/Territory energy law”.

28 Part IIIAB

Repeal the Part.

29 Paragraph 155(1)(c)

Omit “or before an associate member of the Commission who is an AER member and who is specified in the notice,”.

30 After paragraph 155AAA(12)(lb)

Insert:
(lc) the Australian Energy Regulator;

31 Paragraph 157A(1)(c)

Omit “the AER or”.

32 After paragraph 157A(1)(c)

Insert:
or (d) a member of the staff of the AER, a person assisting the AER referred to in section 44AACA or a consultant engaged under section 44AACB;

33 Subsection 157A(2)

Omit “paragraph (1)(c)”, substitute “paragraph (1)(d)”.

34 Paragraph 158B(1)(a)

Omit “before the AER or a person assisting the AER”, substitute “before the AER, a member of the staff of the AER or a person assisting the AER”.

35 Paragraph 158B(1)(f)

Omit “, an associate member of the Commission who is an AER member”.

36 Subsection 158B(5)

Omit “, the associate member of the Commission who is an AER member”.

Schedule 2—Application, saving and transitional provisions

Part 1—Preliminary

1 Definitions

- (1) In this Schedule:
- ACCC Enterprise Agreement** means the *Australian Competition and Consumer Commission Enterprise Agreement 2024-2027* approved under the *Fair Work Act 2009* on 28 March 2024, as in force immediately before the commencement day.
- amending Act** means the *Competition and Consumer Amendment (Australian Energy Regulator Separation) Act 2025*.
- commencement day** means 1 July 2026.
- (2) Expressions used in this Schedule that are defined for the purposes of the *Competition and Consumer Act 2010* have the same meaning as in that Act.

Part 2—Application, saving and transitional provisions

2 Delegations

- (1) This item applies in relation to a delegation if:
 - (a) the delegation was made under section 44AAH of the *Competition and Consumer Act 2010* before the commencement day; and
 - (b) the delegation is in force immediately before the commencement day.
- (2) The delegation continues in force (and may be dealt with), on and after the commencement day, as if it were a delegation made under section 44AAH of the *Competition and Consumer Act 2010*, as amended by the amending Act.

3 Transfer of documents to the AER

- (1) This item applies to a document if:
 - (a) immediately before the commencement day, the document was in the possession of the Commission; and
 - (b) the document was:
 - (i) given to or received by the Commission; or
 - (ii) brought into existence;in relation to the performance of a function of the AER under Division 3 of Part IIIAA of the *Competition and Consumer Act 2010*.
- (2) The documents may be transferred to the AER on or after the commencement day.

Note: Any documents transferred are Commonwealth records for the purposes of the *Archives Act 1983*.

4 Regulations prescribing State/Territory energy laws

- (1) Regulations made for the purposes of paragraph (c) of the definition of ***State/Territory energy law*** in subsection 4(1) of the *Competition and Consumer Act 2010*, and in force immediately before the

commencement day, also have effect, during the transitional period, as if those regulations had been made for the purposes of paragraph (c) of the definition of ***AER State/Territory energy law*** in section 44AB of the *Competition and Consumer Act 2010*, as amended by the amending Act.

- (2) For the purposes of subitem (1), the ***transitional period*** is the period beginning at the start of the commencement day and ending immediately before regulations made for the purposes of paragraph (c) of the definition of ***AER State/Territory energy law*** in section 44AB of the *Competition and Consumer Act 2010*, as amended by the amending Act, take effect.

5 Enterprise Agreement

- (1) The ACCC Enterprise Agreement:
- (a) continues, on and from the commencement day, to cover and apply to APS employees:
 - (i) who it covered and applied to immediately before the commencement day; and
 - (ii) who, on the commencement day, are members of the staff of the AER; and
 - (b) covers and applies to APS employees who are at the classification levels covered by the ACCC Enterprise Agreement whose employment as a member of the staff of the AER commences on or after the commencement day.
- (2) On and after the commencement day, the ACCC Enterprise Agreement covers and applies to the AER Chair as the Agency Head of the APS employees who are members of the staff of the AER.
- (3) This item does not prevent the variation or termination of the ACCC Enterprise Agreement in accordance with law.
- (4) This item does not prevent the terms and conditions of employment of APS employees who are members of the staff of the AER from being varied on or after the commencement day:
- (a) in accordance with those terms and conditions; or
 - (b) by or under a law.

- (5) This item does not affect the operation of section 58 of the *Fair Work Act 2009*.

Note: Section 58 of that Act deals with the interaction between one or more enterprise agreements.

6 References in Enterprise Agreement

- (1) On and from the commencement day, the ACCC Enterprise Agreement has effect in relation to the AER as if:
- (a) a reference to the Chairperson were a reference to the AER Chair; and
 - (b) a reference to the Australian Competition and Consumer Commission, or the ACCC, were a reference to the AER.
- (2) To avoid doubt, this item does not prevent the ACCC Enterprise Agreement from being varied or terminated on or after the commencement day.

Part 3—Transitional rules

7 Transitional rules

- (1) The Minister may, by legislative instrument, make rules prescribing matters:
 - (a) required or permitted by this Schedule to be prescribed by the rules; or
 - (b) necessary or convenient to be prescribed for carrying out or giving effect to this Schedule.
- (2) Without limiting subitem (1), the rules may prescribe matters of a transitional nature (including prescribing any saving or application provisions) relating to:
 - (a) the application of the ACCC Enterprise Agreement to members of the staff of the AER who are APS employees; or
 - (b) the enactment of the amending Act.
- (3) To avoid doubt, the rules may not do the following:
 - (a) create an offence or civil penalty;
 - (b) provide powers of:
 - (i) arrest or detention; or
 - (ii) entry, search or seizure;
 - (c) impose a tax;
 - (d) set an amount to be appropriated from the Consolidated Revenue Fund;
 - (e) directly amend the text of the *Competition and Consumer Act 2010* or the amending Act.
- (4) This Schedule (other than subitem (3)) does not limit the rules that may be made for the purposes of subitem (1).

[Minister's second reading speech made in—
Senate on 23 July 2025
House of Representatives on 30 October 2025]

(35/25)
